

25STCV38579 25STCV38579

County: los-angeles

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Case Number: 25STCV38579 Hearing Date: July 6, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 6, 2026 TRIAL DATE: NOT SET

CASE: Bruce D. Meyer, et al. v. ANT Insurance
Limited, et al.

CASE

NO.: 25STCV38579

MOTION TO DISMISS FOR FORUM

NON CONVENIENS

MOVING

PARTY: Specially Appearing Defendants ANT
Insurance Limited and Certain Underwriters at Lloyds, London (six entities).

RESPONDING

PARTY(S): Plaintiffs

Bruce and Susan Meyer, individually and as trustees of the Bruce and Susan
Meyer Living Trust.

TENTATIVE RULING:

Defendants'

Motion to dismiss is DENIED.

Moving Parties to give notice.

BACKGROUND

This

is a bad-faith insurance action. Plaintiffs allege that Defendants refused to reimburse them for remediation and mitigation expenses following the Palisades Fire.

DISCUSSION:

Defendants move to dismiss the action under the doctrine of forum non conveniens pursuant to a forum selection clause in the underlying policy agreement. The Court denies the motion because it declines to enforce the forum selection clause on public policy grounds.

Legal

Standard

Code of Civil Procedure Section 410.30(a), which codifies the doctrine of forum non conveniens, states: "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." "On a motion for forum non conveniens, the defendant, as the moving party, bears the burden of proof. The granting or denial of such a motion is within the trial court's discretion, and substantial deference is accorded its determination in this regard." (Stangvik v. Shiley Inc. (1991) 54 Cal.3d 744, 751, **bold emphasis added**.)

In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a "suitable" place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California. The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and

relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.

(Stangvik, *supra*,
54 Cal.3d 744, 751 [Citations omitted].)

The balancing of private and public interests is a task squarely within the trial court's discretion. . . . As noted in Stangvik, the analysis is twofold. "In determining whether to grant a motion based on forum non conveniens, the court first must make a threshold determination whether the alternate forum is a suitable place for trial. This is a nondiscretionary determination." Indeed, in Stangvik the Supreme Court expressly rejected defendants' suggestion that the suitability of the alternative forum is part of the discretionary determination of the balance of conveniences. ¿ Only if it finds the alternative forum suitable does the court proceed to the discretionary exercise of balancing the private interests of the litigants and the interests of the public in retaining the action in California. In assessing suitability, however, "There is no balancing of interests in this decision, nor any discretion to be exercised." . . . ¿

(American Cemwood
Corp. v. American Home Assurance Co. (2001) 87 Cal.App.4th 431, 436
[Citations omitted].)

Forum
Selection Clause

Defendants argue that this action is subject to a mandatory forum selection clause in the Insurance Policy that is the basis of this action. The Court agrees that a mandatory forum selection clause is present in the policy.

A
forum selection clause may be either "mandatory" or "permissive." (Animal

Film, Inc. v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 475.)

Clauses which contain "language of exclusivity" are mandatory, whereas clauses which merely provide for submission to jurisdiction are permissive. (Id. at 472.) Mandatory forum selection clauses are given effect without regard to the convenience of the parties unless enforcement would be unfair or unreasonable. (Richtek USA, Inc. v. UPI Semiconductor Corp. (2015) 242 Cal.App.4th 651, 661.)

Paragraph 10 of the applicable ANT
policy is a "Governing Law and Jurisdiction" clause, which states:

This insurance is governed by
the laws of Guernsey. Both the Assured and the Underwriters irrevocably and unconditionally agree to submit any dispute under or in any way relating to this insurance to the exclusive jurisdiction of the courts of Guernsey.

(FAC
Exh. B. p.4.) Although Plaintiffs challenge the enforceability of this clause, they do not deny that this language is present in the Policy on which the action is premised.

Public
Policy

Plaintiffs argue that the forum
selection clause should not be enforced because doing so would substantially diminish their substantive rights contrary to California public policy.

"[C]ourts
should refuse to enforce a forum selection clause if its enforcement would be contrary to a strong or fundamental public policy of this state." (EpicentRx v. Superior Court (2025) 18 Cal.5th 58, 75.) When the opposing party identifies substantive rights that are implicated by the action, the party seeking to enforce the forum selection clause bears the burden to show that litigating the claims in the designated forum will not diminish the substantive rights afforded under California law. (See, e.g., Verdugo v. Alliantgroup, L.P. (2015) 237 Cal.App.4th 141, 147 [California Labor Code claims prevent enforcement of Texas forum selection clause]; America Online, Inc. v. Superior Court (2001) 90 Cal.App.4th 1, 15 [California consumer protection claims prevent enforcement of Virginia forum selection clause].)

Plaintiffs

contend that enforcement of the forum selection clause would eliminate their substantive rights under, in pertinent part, Insurance Code section 790.03 (h). This statute defines a range of conduct as “unfair and deceptive acts or practices in the business of insurance,” including misrepresentation of any pertinent facts or provisions, failing to act promptly on claims-related communications and to investigate and process claims, refusing to attempt a good faith settlement of claims where liability is reasonably clear, and failing to affirm or deny coverage within a reasonable time. (See Ins. Code § 790.03(h).) These insurance protections are an expression of fundamental public policy that can override contractual provisions. (See *Pitzer College v. Indian Harbor Ins. Co.* (2019) 8 Cal.5th 93, 100, 105 [refusing to enforce New York choice-of-law provision because California common-law notice-prejudice rule is an expression of fundamental public policy favoring compensation of insureds].) The burden therefore rests with Defendants to demonstrate that these substantive rights are not endangered by the forum selection clause.

Defendants

fail to carry this burden because they do not address Plaintiffs’ substantive rights. Instead, Defendants argue that the statutory insurance protections that Plaintiffs have invoked are not an expression of fundamental public policy. The Court disagrees. Defendants’ contention that bad faith insurance claims “have no statutory basis” ignores the statutory provisions plainly identified in the First Amended Complaint. (See FAC ¶¶ 67-68.) Defendants’ attempt to distinguish *Pitzer* as pertaining to a choice-of-law issue is also unavailing, because *Pitzer* is directly on point for its conclusion regarding matters of public policy, notwithstanding the difference in the contractual provisions at issue. Defendants have not demonstrated that Plaintiffs’ substantive rights would not be diminished by enforcement of the forum selection clause. Under the burden-shifting framework adopted by controlling precedent, the motion must therefore be denied on public policy grounds.

Dismissal

on Merits

Defendants also request that the Court dismiss the action because of a lack of contractual privity. This is an argument on the merits that is not the proper subject of a motion to dismiss for forum non conveniens.

CONCLUSION:

Accordingly, Defendants' Motion to dismiss is
DENIED.

Moving Parties to give notice.

IT IS
SO ORDERED.

Dated: July 6, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the
tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the
hearing. All
interested parties must be copied on the email. It should be noted that if you
submit on a tentative ruling the court will still conduct a hearing if any
party appears. By submitting on the tentative you have, in essence, waived your
right to be present at the hearing, and you should be aware that the court may
not adopt the tentative, and may issue an order which modifies the tentative
ruling in whole or in part.